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8 SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
9
10 NORTH VALLEY DISTRICT

11 STUDENT LOAN SOLUTIONS, LLC

12 Plaintiffs,

13 vs.

14 DALTON C GAUDIN aka DALTON
15 CALEB GAUDIN and DOES 1 through 30
16 Inclusive,

17 Defendants.

Case No.: 24CHLC00778

**PLAINTIFF STUDENT LOAN
SOLUTIONS, LLC OPPOSITION TO
DEFENDANT'S DEMURRER TO
PLAINTIFF'S COMPLAINT;
MEMORANDUM OF POINTS AND
AUTHORITIES;**

Date: June 18, 2024

Time: 8:30 am

Dept.: F41

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1 Plaintiff Student Loan Solutions, LLC ("Plaintiff") submits the following opposition
2 ("Opposition") to the demurrer to Plaintiff's Complaint submitted by Defendants Kira A. Sitton
3 ("Defendant"). Plaintiff's Opposition is based on the following: 1) Plaintiff sufficiently pled its
4 breach of contract cause of action. The Demurrer should be overruled in its entirety.

5
6 **MEMORANDUM OR POINTS AND AUTHORTIES**

7 **1. Introduction**

8 Student Loan Solution LLC ("Plaintiff") Complaint properly pleads facts that support his
9 Cause of Action for a breach of contract. The issues raised in Defendant's Demurrer are issues of
10 fact, and those facts should be considered at trial, or via summary judgment at the very least. The
11 Court should overrule Defendant's demurrer.
12

13 Plaintiff's complaint ("PC") has properly plead a breach of contract cause of action where
14 Defendant entered into the agreement with the original creditor Bank of America ("original
15 creditor"). As stated in section 22 of the complaint, the agreement entered into by the original
16 creditor and defendant is an installment contract. As stated in section 22 of the complaint, "The
17 statute of limitations begins to run on each installment payment as it becomes due unless and
18 until the creditor affirmatively elects to declare the entire sum due. When acceleration occurs, the
19 statute of limitations begins to run on all future installments. At the time of acceleration, all past
20 due installments are still subject to the limitations period that began to run on each installment's
21 respective due date."
22

23 Plaintiff properly plead the loan at issue was accelerated with an acceleration notice dated
24 December 28, 2022. The complaint was filed on February 13, 2024. Plaintiff is only seeking
25 installments from four years prior (within the statute of limitations) dating back to February 20,
26

1 2020 installment through the end of the loan with the final installment owing on November 20,
2 2029. The complaint only seeks 118 installments that have been pled to be within the statute of
3 limitations. (See section 24 sub sections A through D inclusive of Plaintiff's complaint).
4 Plaintiff's complaint alleges facts to support its claim for a breach of contract. The Demurrer
5 should be overruled.
6

7 Defendant alleges the breach of action occurred in 2010. As will be described in details
8 below, this is not what plaintiff plead. Plaintiff succinctly pled each missed installment is a
9 breach. Defendant brings up severability. The severability argument is one that is inappropriate
10 to make at a demurrer and would need to be made at a later stage if applicable such as at a
11 summary judgment motion or at trial. Defendant lastly claims there was undue delay by Plaintiff.
12 This is simply incorrect. As will be discussed in detail below, Plaintiff brought this action timely
13 and within the statute of limitations as plead in the complaint. This Court should overrule
14 Defendants' Demurrer.
15

16 **2. STATEMENT OF FACT**

17 The loan in question was originated by Bank of America. PC ¶ 9. Plaintiff Student Loan
18 Solutions (hereinafter referred to as 'Plaintiff') purchased the debt from Bank of America on
19 October 31, 2017 PC ¶ 10, 12, 13, 14, 22, 24, 41. The contract at question is an installment
20 contract. PC ¶ 12, 13, 14, 22, 24, 41. The installment contract was accelerated on December 28,
21 2022 by Plaintiff where Defendant was sent proper notice of the acceleration. PC ¶ 24C. Suit was
22 filed on February 13, 2024. Plaintiff is only seeking installments from four years prior to the
23 filed suit date (within the statute of limitations) dating back to February 20, 2020 installment
24 through the end of the loan with the final installment owing on November 20, 2029. PC ¶ 23, 24,
25
26

1 41. The 'There have been 118 installments of \$90.11 each totaling \$6,632.98 known as the
2 'accelerated sum.' PC ¶ 24A, 24D.

3
4 **3. ARGUMENT**

5 **A. LOAN AT ISSUE IS AN INSTALLMENT CONTRACT AND WITHIN THE**
6 **STATUTE OF LIMITATIONS**

7 Here, the loan agreement entered with Defendant that is at issue is an installment contract.

8
9 Cal. Civ. Proc. Code § 337 Within four years (a) An action upon any contract, obligation
10 or liability founded upon an instrument in writing, except as provided in Section 336a of
11 this code; provided, that the time within which any action for a money judgment for the
12 balance due upon an obligation for the payment of which a deed of trust or mortgage with
13 power of sale upon real property or any interest therein was given as security, following
the exercise of the power of sale in such deed of trust or mortgage, may be brought shall
not extend beyond three months after the time of sale under such deed of trust or
mortgage.

14
15 *Acceleration clause contracts*

16 "When the contract contains an acceleration clause, **'the statute does not begin to run on**
17 **installments not yet due until the creditor, by some affirmative act, manifests his election to**
18 **declare the entire sum due.**" (*Bird v. Real Time Resolutions, Inc. (N.D.Cal. 2016) 183 F. Supp.*
19 *3d 1058, 1062.*) (emphasis added)

20
21 Here, the action is upon the acceleration date with proper accelerated notice. Plaintiff
22 accelerated the installment contract on December 28, 2022 where Defendant was sent proper
23 notice of the acceleration. PC ¶ 24C. This date of December 28, 2022 where Plaintiff took an
24 affirmative act of accelerating the installment contract by mailing out the acceleration notice is
25 when the statute begins to run on installments not yet due.

1
2
3 The statute of limitations begins to run against the cause of action for the recovery of an
4 unpaid installment at the time it is payable. (White v. Moriarty (1993) 15 Cal.App.4th 1290,
5 1293 [19 Cal.Rptr.2d 200].)

6 Unless it is shown that the creditor has taken some affirmative action to invoke the benefit of
7 the acceleration clause, the statute begins to run not from the date of the breach of the obligation,
8 but from the date on which the future payment falls due. (Stewart v. Claudius (1937) 19
9 Cal.App.2d 349, 350 [65 P.2d 933].)

11 “[W]here money is payable in installments, the statute of limitations begins to run against the
12 cause of action for the recovery of an unpaid installment at the time it is payable.” Bank of Am.
13 Nat’l Tr. & Sav. Asso. v. McLaughlin, 152 Cal. App. 2d Supp. 911, 915 (1957); White v.
14 Moriarty, 15 Cal. App. 4th 1290, 1299 (1993). Each installment has a separate limitations period,
15 which starts running the day immediately after an installment is due. Conway v. Bughouse, Inc.,
16 105 Cal. App. 3d 194, 202 (1980).

18 The complaint was filed on February 13, 2024, so all installments due between February
19 12, 2024 and four years prior to filing date are actionable.¹ The time period within the statute of
20 limitations as described in the Account Statement attached as exhibit of the complaint states the
21 proper statute of limitations period is from February 20th, 2020 through November 20, 2029 of
22

23
24
25 ¹ The Complaint made it clear that it did not seek to recover any unpaid amount owing prior to
26 February 20, 2020. See Complaint at p. 36 (“Out of Stat Installments” for “12/20/2009 to
27 1/20/2020” reflecting “122 payments” in the “Payment Amount” of “\$90.11” for an aggregated
total of “\$10,993.42”) with Defendant (alleging the last payment was January 27, 2010).

1 the installment contract. Each one of these installment payments fall within the statute of
2 limitations from when Plaintiff took an active action and accelerated the installment contract.

3
4 *Installment Contract*

5 Attached to the complaint is an exhibit listed under the promissory note (Exhibit A). In
6 the promissory note, section I is a Whole Loan Due provision. The whole lone due provision
7 reads.

8
9 WHOLE LOAN DUE: To the extent permitted by applicable law, I will be in default and you
10 have the right to give me notice that the whole outstanding principal balance, accrued
11 interest, and all other amounts payable to you under the terms of this Credit Agreement, are
12 due and payable at once (subject to any applicable law which may give me a right to cure my
13 default) if: (1) I fail to make any monthly payment to you when due, (2) I die, (3) I break any
14 of my other promises in this Credit Agreement, (4) any bankruptcy proceeding is begun by or
15 against me, or I assign any of my assets for the benefit of my creditors, or (5) I make any
16 false written statement in applying for this loan or any other loan or at any time during the
17 Deferment or Repayment Periods. If I default, I will be required to pay interest on this loan
18 accruing after default. The interest rate after default will be subject to adjustment in the same
19 manner as before default. Upon default, you may also capitalize any interest and fees (i.e.,
20 add accrued and unpaid interest and fees to the principal balance), and increase the Margin
21 used to compute the Variable Rate by two percentage points (2%).

22 In Savoy v. National Collegiate Student Loan Trust 2005-3, 557 S.W.3d 825, the identical
23 whole loan due paragraph was used where the court clearly identifies the exact same language as
24 the acceleration clause used here. Savoy v National Collegiate Student Loan Trust went on to
25 say, "The Credit Agreement states that ... the trust 'will have the right to give notice that the
26 whole outstanding principal balance, accrued interest, and all other amounts payable to [the
27 Trust] under the terms of this Credit Agreement are due and payable at once.'"

28 This shows that the Whole Loan Due Paragraph is a proper and valid acceleration clause
29 within the original promissory note at issue.

1 *Installment Contract – Consumer Financial Protection Bureau & Ongoing Relationship*

2 Defendant incorrectly states this contract is not subjected to an installment contract
3 because there is no security interest in a borrower held collateral. (Defendant’s Demurrer, Page
4 11 lines 1-3). Defendant is making a bold claim saying personal loans are not subjected to
5 installment contracts.
6

7 In fact, the Consumer Financial Protection Bureau (CFPB) states on its own website that
8 “A personal installment loan is a type of loan where you borrow a sum of money and must pay it
9 back in fixed amounts called ‘installments.’ Personal installment loans are closed-end loans,
10 meaning that the lender gives you all of the money at the beginning.” (See Exhibit A)

11 Where, as here, the parties agreed to an acceleration clause, thus, “[w]ithout some
12 affirmative action on the part of the holder of a note containing an optional acceleration clause
13 the statute of limitations is not set in motion for the theory of the statute is that a creditor has the
14 full statutory period, whatever that may be, on any day of which he may of his own volition
15 commence an action.” Trigg v. Arnott, 22 Cal.App.2d 455, 458 (1937).
16

17 In addition, Spears v. Spears, 97 Cal. App. 5th 1294, 316 Cal. Rptr. 3d 451 (2023)
18 involves a case that does not involve a security interest – directly contradicting Defendant’s
19 argument trying to argue mortgage and heloc installment contracts are different.

20 If a contract calls for a party's performance on separate occasions such that the
21 contractual duties are divisible, each breach triggers a separate limitations period. (*Id.* at
22 pp. 968–969, 312 Cal.Rptr.3d 664.) To determine whether breach of an agreement to
23 repay a debt gives rise to one or multiple limitations periods, a court must first examine
24 whether the contract requires periodic payments. (*Id.* at p. 971, 312 Cal.Rptr.3d 664.) If it
does, then the court must then “determine whether or not the duty to make a monthly
payment is divisible from the duty to pay the full amount of the debt.” (*Ibid.*)

25 ... James’ payments were intended to be periodic. This, together with the fact that the
26 only alleged acceleration clause concerned James’ death, creates a possibility that the
periodic payments were intended to be divisible from the overall obligation to repay the
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1 debt, thus triggering separate limitations periods for each payment. (See *McElfish, supra*,
2 94 Cal.App.5th at pp. 969–970, 312 Cal.Rptr.3d 664 [**payment obligation was divisible**
3 **and each payment created separate limitations periods where duty to pay full**
4 **amount was divisible from periodic payments and clause for acceleration of debt**
5 **upon missed payment was discretionary**].) The trial court therefore could not have
6 dismissed this aspect of Brian's claim based on the statute of limitations. (Emphasis
7 added)

8 Additional authority on this include Conway v. Bughouse, Inc., 105 Cal. App. 3d 194, 164
9 Cal. Rptr. 585 (Ct. App. 1980) where Even where specific amount of money is due to be paid out
10 over a period of time, statute of limitations begins to run against the cause of action for the
11 recovery of unpaid installment at the time it is payable; Garrison v. Oracle Corp., 159 F. Supp.
12 3d 1044, 1083–84 (N.D. Cal. 2016) Where money is payable in installments, statute of limitations
13 begins to run against cause of action for recovery of unpaid installment at time it is payable.

14 The acceleration clause agreed to by both parties along with each installment payment
15 due creates an ongoing relationship between the creditor (now Plaintiff) and Defendant.

16 *Installment Contract – California Student Loan Servicing Act*

17 In addition, California’s Student Loan Servicing Act (Jan 1, 2024) specifically defines a
18 private student loan as an installment loan: Cal. Code Regs. tit. 10, § 2032 - (15) “**Installment**
19 **contract” means a private student loan** from a postsecondary institution to a student in which
20 the student agrees to repay the amount advanced, covered, credited, deferred, or funded in a
21 fixed number of payments of a fixed amount, including an education installment contract and a
22 retail installment contract.” (emphasis added)

23 As shown by authority from the CFPB, Cal. Code Regs. tit. 10, § 2032, and case law, the
24 loan at issue is in fact an installment contract.

1 **B. PLAINTIFF HAS ACTED PROPERLY, TIMELY AND HAS NOT WAIVED**
2 **ANY RIGHT TO ACCELERATE PAYMENTS**

3
4 Defendant contends plaintiff did not act timely and thus waived its right to accelerated
5 and demand payment on the debt at issue. This is simply incorrect.

6 As shown above in Plaintiff's moving paper, Plaintiff accelerated the account at issue and
7 brought suit within the allowed statute of limitations. It is of no consequence or relevant that the
8 last payment occurred in 2010. The issue is whether Plaintiff can bring suit and is not barred by
9 the statute of limitations from when Plaintiff accelerated the contract.
10

11 "Laches within the term of the statute of limitations is no defense at law." United States
12 v. Mack, 295 U.S. 480, 489, 55 S.Ct. 813, 818, 79 L.Ed. 1559 (1935)
13

14 "As has been stated, [n]o principle is better established, or more uniformly acted on
15 in courts of equity, than that in respect to the statute of limitations—equity follows the
16 law—that is to say, if a legal demand be asserted in equity, which at law is barred by statute, it is
17 equally barred in a court of equity; *and if not barred by statute at law, neither is it barred in*
18 *equity. Rowe v. Bentley*, 29 Gratt. 756–759." Coles v. Ballard, 78 Va. 139, 149 (1883) (emphasis
19 added);
20

21 "The question of laches and staleness of claim virtually falls with that of the defense of
22 the statute of limitations. So long as the demands secured were not barred by the statute of
23 limitations, there could be no laches in prosecuting a suit upon the mortgages to enforce those
24 demands." Cross v. Allen, 141 U.S. 528, 537, 12 S. Ct. 67, 71, 35 L. Ed. 843 (1891)
25

1 Burrill v. Robert Marsh & Co., 138 Cal.App. 101 (1934) is an older case that deals with
2 waiver of acceleration. It says:

3
4 [T]he acceleration clause in the notes here involved the holder is given the right at “any
5 time thereafter,” after a period of thirty days after default, to declare the principal due,
6 while in the cases cited by appellants, particularly the case of *Crossmore v. Page*, 73 Cal.
7 213, 14 P. 787, 2 Am. St. Rep. 789, the to declare the note due is ‘immediately’ upon the
8 default. The clause “any time thereafter” gives to the holder the widest possible latitude
9 in time within which to act, while the word “immediately” denotes the most restricted
10 period within which he must act. Id at 826

11 Here, the whole loan due clause is similarly broad and permits acceleration after *any*
12 missed monthly payment. Even if Plaintiff somehow waived its right to accelerate based on
13 payments missed ten years ago (which Plaintiff disputes), the right accrued with respect to each
14 subsequent missed payment. Further, as *Piedmont* instructs, the agreement should be read to
15 give effect to the parties intent—which here, was to grant the lender the right to accelerate with
16 respect to each payment default. Alternatively, Plaintiff should be permitted leave to amend to
17 address the waiver arguments. Plaintiff and its predecessor communicated with defendant
18 through Williams & Fudge several times to get her to make payments. They therefore acted
19 timely and did not waive their rights.

20 Defendant argues that its been over 14 years since the last payment making it hard to
21 defend itself. Luckily bank records can go back long enough for all parties to bring their best
22 claims. Additionally, defendant agreed to the terms of the contract which include the acceleration
23 clause. Not holding a party to a term of an agreement, even one from 14 plus years ago would set
24 a dangerous precedent.

1 As shown above, Plaintiff brought suit within four years of accelerating the contract and
2 is only seeking installments from within four years of filing suit.

3
4 **C. Severability – Payments are Severable**

5 Defendant alleges private student loans are one contract and the statute of limitations is
6 not severable in each installment due. Defendant claims the 240 payments are not severable
7 distinct obligations that were breached. Further, defendant claims the breach occurred when the
8 loan initially went into default in 2010. Defendant cites to two main cases for this position
9 – *Armstrong Petroleum Corp. v. Tri-Valley Oil & Gas Co.* (2004) 116 Cal.App.4th 1375,
10 and *Jozovich v. Central Cal. Berry Growers Ass'n* (1960) 183 Cal.App.2d 216.

11
12 Defendant is missing one important fact in its entire brief. Due to the **optional**
13 **acceleration clause**, breach of Defendant's monthly payment obligation is divisible from the
14 duty to pay the full loan amount. Defendants cases (*Armstrong* and *Jozovich*) involve an oil
15 contract and a quick-freezing strawberry machine (not a student loan). Defendant fails to
16 mention in Armstrong the breach was not a part of the negotiated contract which included the
17 acceleration clause, and that is the reasoning the matter in Armstrong was deemed to be outside
18 of the statute of limitations. In Armstrong, there was a disagreement about how to calculate what
19 was owed which was not negotiated in the original contract thus not part of the agreement re
20 installments and out of the SOL²

21
22
23
24 ² Armstrong "Pursuant to the terms of article II.A of the Webb Tract JOA, the information set forth in
25 exhibit A was to include burdens on production. Despite this requirement, exhibit A to the Webb Tract
26 JOA does not specify or state the amount of any royalty, overriding royalty or other interest that burdens
the oil and gas production [***15] from Webb Tract. Although exhibit A lists the eight leases included in
the Webb Tract, Tri-Valley intentionally left the actual amount of burdens undefined.

1 Here, what is being sought is the principal payments only of the negotiated payments
2 bargained by defendant in the original contract. The oil contract was held to be severable.
3 Moreover, the courts in those cases do not discuss installment contracts with an optional
4 acceleration clause. Accrual of a cause of action could be non-severable if the contract does not
5 have an optional acceleration clause. But that's not what's going on here. All parties can and
6 should agree the Defendant's installment contract has a clear optional acceleration clause.
7

8 Additionally, to be clear, California recognizes private student loans as installment
9 contracts and severable (payment of one sum to the student in exchange for repayment in
10 installments). See above with regards to Cal. Code Regs. tit. 10, § 2032.

11 Piedmont Capital v MCELFISH 94 Cal.App.5th 961 cited by Defendant deals with the
12 acceleration issue actually supporting Plaintiff's position saying:

13 But was McElfish's duty to make those monthly payments divisible from his duty to pay
14 the full amount of the loan? We conclude the answer is 'yes.' That is because the plain
15 terms of the HELOC agreement obligated McElfish to pay the full, outstanding balance
16 on the line of credit in 2036 while simultaneously granting the lender—now, Piedmont—
17 the *choice* whether to accelerate the maturity date when McElfish missed a monthly
18 payment or at "anytime." By granting the lender that choice, and by explicitly reserving
19 the lender's ability to "delay exercising" this right "without losing [it]," the HELOC
20 agreement contemplates that a breach of McElfish's duty to make monthly payments was
21 divisible from his duty to pay the full amount. *Id* at 970.

22 This is similar to the whole loan due language here, which gives the lender the right to
23 accelerate if the borrower "fail(s) to make any monthly payment to you when due..." The
24 disclosure statement also identifies the maturity date as 240 months after the first payment due
25 date. In short, *Piedmont* supports Plaintiff's severability position.

26 Defendant says it is distinguishable because it dealt with a secured loan, rather than an
27 unsecured loan. There are a couple problems with this argument. First, although Defendant says

1 Plaintiff does not cite any cases which state that an unsecured consumer loan is to be treated in
2 this same fashion, Defendant likewise does not cite any case law saying unsecured loans and
3 secured loans are to be treated differently. Second, and perhaps more importantly, the analysis
4 and reasoning of the court in *Piedmont* is not in any way on the fact that it is a secured loan. The
5 court mentions it in passing, including in a footnote, and then confines its analysis to the terms of
6 the loan agreement. Defendant does not cite to any case which suggests the same analysis
7 should not apply to an unsecured consumer loan.
8

9 10 *Charge-off accounts*

11 A charge-off is simply an internal accounting practice that “amounts to a ledger book
12 reclassification.” Kelly v. Wolpoff & Abramson, L.L.P., 634 F. Supp. 2d 1202, 1208 (D. Colo.
13 2008) (charge off does not extinguish the debt). A charge-off debt “does not affect the fact or
14 timing of a delinquency.” Vilar v. Equifax Info. Servs., LLC, 2014 U.S. Dist. LEXIS 179297, at
15 *67-68 (D.N.M. Dec. 17, 2014). Defendant is simply misunderstanding the impact and conduct
16 charge-off has.
17

18
19 As shown prior in this opposition, the acceleration clause agreed to by both parties along
20 with each installment payment due creates an ongoing relationship between the creditor (now
21 Plaintiff) and Defendant creates a severable contract.
22

23 **D. Plaintiff Accelerated the note within four years of the complaint**

24 Defendant is simply incorrect in its assessment that the acceleration of the contract took
25 place more than four years prior to the complaint being filed.
26

1 First, "a demurrer is limited to the operative complaint's four corners, attached exhibits,
2 and judicially noticeable matters. (*Hoffman v. Smithwoods RV Park, LLC* (2009) 179
3 Cal.App.4th 390, 400.) Because a demurrer tests only the sufficiency of the complaint, "[a] court
4 will not consider facts that have not been alleged in the complaint unless they may be reasonably
5 inferred from the matters alleged or are proper subjects of judicial notice. Bonakdar v. Ranger
6 Constr., 2022 Cal. Super. LEXIS 393, *2
7

8 In the complaint for this current matter, the complaint alleges clearly in section 24 (C)

9 Student Loan Solutions, LLC sent Defendants written notice of acceleration via an
10 Acceleration Notice dated April 29, 2022. A copy of the Acceleration Notice(s) is
11 attached hereto as Exhibit "C" and incorporated fully herein by this reference. The
Account was not accelerated at any time prior to April 29, 2022.

12 The facts in the complaint show Plaintiff accelerated the account on April 29, 2022 and
13 was at no time before accelerated. The complaint here was filed on January 9, 2024, well within
14 the four years of the time acceleration took place. Defendant makes the weak argument stating
15 "Plaintiff's Complaint in this matter does not allege when the subject account was accelerated,
16 only when Plaintiff gave notice of acceleration" (Demurrer, Page 12, Line 25-26). To rebut this,
17 the only time Plaintiff accelerated the loan for this account was when Plaintiff gave notice to the
18 defendant as described in section 24(C) with the Acceleration Notice dated April 29, 2022.
19

20 Defendant brings up a previous lawsuit. This should be disregarded altogether. At this
21 stage of a demurrer as it is only appropriate to discuss the four corners of the current complaint.
22 However, if the court is inclined to look at those facts, there was a previous law suit and
23 dismissed without prejudice for procedural reasons. Plaintiff can demonstrate clearly the facts
24 and how Defendant is misapplying the previous case pleadings and exhibits.
25

1 Not that it is really pertinent at this stage, but plaintiff wanted to address the weak
2 argument defendant made. First, Defendant did not quote the entire language of the section from
3 the old complaint.

4
5 Plaintiff alleges that within the last four years, on or about August 10, 2018, hereinafter
6 referred to as the "Acceleration Date", the Defendants became indebted on the Account at
7 the accelerated sum of \$11,292.68. **Student Loan Solutions, LLC, as Holder,**
8 **accelerated the Note for \$11,292.68. SLS sent Defendants written notice of**
9 **acceleration sum via an Acceleration Notice dated April 29, 2022.** A copy of the
10 Acceleration Notice(s) is attached hereto as Exhibit "C" and incorporated fully herein by
11 this reference. (emphasis added)

12 Plaintiff treated the 'acceleration date' as the in-statute installment on the old complaint
13 (supported by exhibits on the old complaint) and the acceleration notice as when the acceleration
14 notice took place. As in both the old complaint and the current complaint here, the acceleration
15 of the debt took place only once, on April 29, 2022.

16 **E. Plaintiff Requests Leave To Amend**

17 It is an abuse of discretion to sustain a demurrer without leave to amend if the plaintiff shows
18 there is a reasonable possibility any defect identified by the defendant can be cured by
19 amendment.

20 Where the defect raised by a motion to strike or by demurrer is reasonably capable of cure,
21 'leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the
22 defect in question.' [Citations.] A pleading may be stricken only upon terms the court deems
23 proper [citation] that is, terms that are just. [Citations.] It is generally an abuse of discretion
24 to deny leave to amend, because the drastic step of denial of the opportunity to correct the
25 curable defect effectively terminates the pleader's action.

26 (Velez v. Smith, 142 Cal.App.4th 1154, 1174-75 (2006) (quoting CLD Constr., Inc. v. City of
27 San Ramon, 120 Cal.App.4th 1141, 1146-47 (2004)).)

1 While Plaintiff believes that the claims at issue in the Demurrer were properly pleaded, if this
2 Court requires additional supporting factual allegations, Plaintiff should be offered the
3 opportunity to provide them, and specifically requests leave to do so.

4 5 **4. CONCLUSION**

6 For the reasons stated above, Defendant's Demurrer should be overruled in its entirety.
7 However, should Defendants' Demurrer be sustained, Plaintiff respectfully requests leave to
8 amend.

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11 Dated: June 3, 2024

GOLDSMITH & HULL,

A Professional Corporation

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17 By 
18 Stephen R. Goldsmith
19 Attorneys for Plaintiff
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PROOF OF SERVICE

STATE OF CALIFORNIA, COUNTY OF LOS ANGELES

I am employed in the county of Los Angeles, State of California. I am over the age of 18 and not a party to this action; my business address is 16933 Parthenia Street, Suite 110, Northridge, California 91343.

On the date set forth below I served the foregoing document described as PLAINTIFF STUDENT LOAN SOLUTIONS, LLC OPPOSITION TO DEFENDANT'S DEMURRER TO PLAINTIFF'S COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITES;

on the interested parties in this action by placing ☐ duplicate original(s) ☐ true copy(ies) thereof enclosed in a sealed envelope addressed, ☒ personally delivered the true copy(ies) thereof enclosed in a sealed envelope addressed as follows:

Daniel Sparky Abraham
300 E Esplanade Dr. Ste 900
Oxnard, CA 93036
sparky@jubilee.legal

☒ BY MAIL. ☒ BY Electronic-Mail ☒ I deposited such envelope, postage thereon fully prepaid, in the United States mail at Northridge, California

☐ As follows: I am "readily familiar with the firm's practice of collection and processing correspondence for mailing. Under that practice it would be deposited with the U.S. Postal Service on that same day with postage thereon fully prepaid at Northridge, California in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after the date of deposit for mailing an affidavit.

☐ BY PERSONAL SERVICE. I delivered such envelope(s) by and to the office of the addressee(s)

☒ STATE. I declare under penalty of perjury, under the laws of the State of California, the foregoing is true and correct and whose direction this service was made June 3, 2023, at Northridge, California


B. Alvarado

EXHIBIT “1”

LAST REVIEWED: DEC 02, 2021

What is a personal installment loan?

A personal installment loan is a type of loan where you borrow a sum of money and must pay it back in fixed amounts called "installments."

Personal installment loans are closed-end loans, meaning that the lender gives you all of the money at the beginning. You must generally pay it back in set or fixed amounts over a specific period of time. These loans may be used for a number of personal reasons, including making a large purchase, covering unexpected expenses, or consolidating existing debt.

These loans can range in size from several hundred dollars to several thousand dollars or more and their length can range from a few months to several years. The payments are generally the same throughout the length of the loan.

Applying for a personal installment loan

When applying for a personal installment loan, most lenders consider the following factors when determining the interest rate and terms of the loan:

- Your [credit score and reports](https://cfpb.gov/askcfpb/316) (cfpb.gov/askcfpb/316)
- Income
- Debts
- Amount and length of the loan
- Interest rates permitted by state law
- Other factors, such as your bank account transactions

Interest rates for personal loans can either be fixed or adjustable. It's important to understand whether there are [other fees associated with your loan](https://cfpb.gov/askcfpb/2120) (cfpb.gov/askcfpb/2120). Working with multiple lenders can also help you compare your options and find the best loan terms for your situation.

Missing a payment or failing to pay back your personal installment loan

If you're unable to make a payment, contact your lender as soon as possible to understand your options. These may include deferment, forbearance, or a payment plan. These options could allow you to postpone your payments, make partial payments, or lower the interest on your loan.

If you miss a payment, your lender might use third-party [debt collectors](https://www.consumerfinance.gov/consumer-tools/debt-collection/) (<https://www.consumerfinance.gov/consumer-tools/debt-collection/>) to try and collect the amount you agreed to repay. They also may report your payments to one or more of the [three major credit reporting companies](https://cfpb.gov/askcfpb/5) (cfpb.gov/askcfpb/5) (Experian, Equifax, and TransUnion). Failing to make your payments on time can have a significant impact on your [credit score](https://www) ([https://ww](https://www)

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